

ANSWER KEY

Liability & Legal Aspects — BSIS Skills Course

Instructor Copy — Retain Securely — Do Not Leave Unattended

20 Questions | Pass: 100% | BPC §7583.6(b)

QUICK REFERENCE — ALL ANSWERS

20 Q | Pass: 100%

Q1	C	Q2	B	Q3	B	Q4	B	Q5	C
Q6	B	Q7	C	Q8	B	Q9	B	Q10	B
Q11	B	Q12	B	Q13	C	Q14	C	Q15	C
Q16	B	Q17	C	Q18	B	Q19	B	Q20	D

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Personal/Contractor/Employer Liability

PC §236 | Tort Law

Personal liability for a security guard arises when the guard:

- A. Follows post orders accurately and acts within their authorized scope
- ✓ **C. Commits a wrongful act — intentional or negligent — that causes harm to another person**

- B. Operates within the scope of their lawful authority while on duty
- D. Reports a safety hazard to their supervisor and documents it in the log

C

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Personal/Contractor/Employer Liability

Respondeat Superior

The legal doctrine of 'respondeat superior' establishes that:

- A. Guards are personally liable for all use-of-force incidents regardless of scope
- C. Property owners are responsible for all security incidents that occur on their premises

- ✓ **B. Employers may be vicariously liable for wrongful acts by employees within the scope of employment**
- D. BSIS bears liability for harm caused by improperly trained guards if the guard is not properly trained

B

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Personal/Contractor/Employer Liability

Negligent Training | Contractor Liability

MACCESS INC., as the licensed PPO, may face contractor liability specifically when:

- A. A guard acts outside the scope of their employment on personal time
- C. Only when the PPO directly and personally commits the wrongful act in question

- ✓ **B. The PPO's negligent training or inadequate supervision contributed to the guard's wrongful act**
- D. The property owner fails to maintain safe conditions at the client site

B

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Personal/Contractor/Employer Liability

Indemnification

A standard security services contract indemnification clause generally:

- A. Eliminates all liability for the individual guard regardless of the nature of the act
- C. Makes the individual guard personally responsible for all losses suffered by the client

✓ **B. Transfers liability from the property owner/client to the PPO for occurring within the guard's scope of duties**

- D. Provides legal protection exclusively to the property owner against party claims

B

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Criminal/Civil/Administrative Liability

PC §236 | PC §242

A security guard who conducts a false or unlawful arrest may face liability in which categories?

- A. Criminal liability only — false arrest is not recognized as a civil tort
- ✓ **C. Criminal, civil, and BSIS administrative liability simultaneously arising from the same act**

- B. Civil liability only — false arrest does not constitute a criminal offense
- D. BSIS administrative liability only — criminal charges require law enforcement to make the arrest

C

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Criminal/Civil/Administrative Liability

PC §242

Battery under California Penal Code §242 is legally defined as:

- A. A threat or attempt to use violence against another person
- C. The use of excessive force during an otherwise lawful arrest

✓ **B. Any willful and unlawful use of force or violence upon the person of another**

- D. The unlawful restraint of a person's physical movement without consent

B

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Criminal/Civil/Administrative Liability

BPC §480

BSIS administrative liability can result in all of the following EXCEPT:

A. Suspension of the individual's security guard registration card

B. Revocation of the individual's security guard registration card

✓ **C. A civil judgment for monetary damages awarded to the injured party**

D. Assessment of civil penalties and regulatory fines against the guard

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Criminal/Civil/Administrative Liability

Negligent Hiring

A PPO that fails to conduct required background checks before hiring a guard may face liability under the doctrine of:

A. False imprisonment — if the guard conducts an unlawful arrest

C. Statutory violation only — negligent hiring does not create civil exposure

✓ **B. Negligent hiring — if the guard causes harm that a proper background check would have predicted**

D. BSIS administrative penalties exclusively — no civil liability attaches to administrative decisions

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BSIS Code & Regulations

Title 16 CCR §643(b)

Which of the following is required to appear on a valid BSIS Certificate of Completion?

A. The guard's residential address and Social Security Number

C. The property owner's authorization signature confirming the guard completed training on site

✓ **B. The training provider's name and BSIS license number, course name, dates of training, hours, and a unique sequential serial number**

D. The guard's Social Security Number and DOJ fingerprint ATI number

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BSIS Code & Regulations

Title 16 CCR §643(b)

Under Title 16 CCR §643(b), a security guard is required to retain their Certificate of Completion:

- A. For one year from the date of course completion
- ✓ **B. Until the guard's registration expires or is canceled**
- C. For five years following the last date of their security employment
- D. Only for the duration of their employment with the issuing PPO

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BSIS Code & Regulations

BPC §7583.9

A California security guard registration (guard card) is valid for how long before renewal is required?

- A. One year
- ✓ **B. Two years**
- C. Three years
- D. Five years

B

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BSIS Code & Regulations

BPC §7583.20

Under BPC §7583.20, a guard card that has lapsed past its expiration date may still be renewed — with a delinquency fee — within how many days of expiration?

- A. 30 days from expiration
- ✓ **B. 60 days from expiration**
- C. 90 days from expiration
- D. 120 days from expiration

B

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BSIS Code & Regulations

BPC §7583.6

The California agency responsible for enforcing security guard licensing requirements and standards is:

- A. The California Highway Patrol (CHP)
- B. The California Department of Justice (DOJ)
- ✓ C. The Bureau of Security and Investigative Services (BSIS)
- D. The California Attorney General's Office

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Role of a Security Guard

BPC §7582.1

Under BPC §7582.1, the defined purpose for which a licensed PPO employs security guards is to:

- A. Enforce municipal laws, ordinances, and regulations on behalf of local government
- B. Arrest persons suspected of criminal activity on public property
- ✓ C. Protect persons or property or prevent theft for the PPO's clients
- D. Conduct criminal investigations on behalf of law enforcement agencies

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Role of a Security Guard

BPC §7582.1 | PC §830

The most fundamental legal distinction between a security guard and a California peace officer is that a security guard:

- A. Is authorized to use no level of physical force under any circumstance
- B. Cannot carry or use a firearm regardless of any permit, license, or authorization
- ✓ C. Derives all law enforcement authority from PC §837 as a private citizen — not from statutory peace officer powers
- D. Possesses the same law enforcement authority as a sworn officer while operating on private property

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Role of a Security Guard

PC §490.5 | BPC §7582.1

Under the Shopkeeper's Privilege (PC §490.5), a security guard working for a retail merchant may detain a suspected shoplifter when the guard has:

- A. Reasonable suspicion based on a report from another store employee
- C. A loss prevention alert generated by the store's automated monitoring system

✓ **B. Probable cause based on their own direct personal observation of theft**

- D. A verbal report of the theft from any person present in the store at the time of the theft

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Role of a Security Guard

BPC §7583.6 | Annual CE

The minimum number of continuing education hours a registered security guard must complete annually after the first year of registration is:

- A. 4 hours

✓ **C. 8 hours**

- B. 6 hours

- D. 16 hours

C

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Role of a Security Guard

BPC §7583.6(e)

The mandatory annual 8-hour continuing education requirement must include a minimum of how many hours specifically covering Appropriate Use of Force topics?

- A. 1 hour

- C. 4 hours

✓ **B. 2 hours**

- D. The full 8 hours must cover AUF

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Review

BPC §7583.6 | PC §236

A guard makes a lawful citizen's arrest and holds the subject for 45 minutes without contacting law enforcement because their supervisor is temporarily unreachable. This action could result in:

A. No liability — the guard was acting in good faith while attempting to contact their supervisor
C. Only an internal policy violation with no resulting legal or regulatory consequences

✓ **B. False imprisonment charges and potential BSIS administrative action for unlawful detention**

D. A positive performance notation for thorough and persistent documentation

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Review

PPO License | BPC §7583.6

MACCESS INC.'s California Private Patrol Operator license number — required to appear on all BSIS Certificates of Completion per Title 16 CCR §643(b) — is:

A. #112233
C. #133445

B. #100001
✓ **D. #122729**

D

SCORING GUIDE & INSTRUCTOR NOTES

Passing Score

100% — all 20 questions correct required per BPC §7583.6(b)

Failed Assessment

Full retake required. Student must review all course modules before retaking.

Certificate

Issue Certificate of Completion ONLY upon 100% score. Sign, date, and retain a copy.

Record Retention

Retain each student's assessment record for duration of employment. Available to BSIS on request per Title 16 CCR §643(b).

Confidentiality

This answer key is for MACCESS INC. instructor use only. Never share with students before, during, or after assessment.

Live Scan

Live Scan integration is pending equipment acquisition. When active, completed LS records will be stored alongside training records.